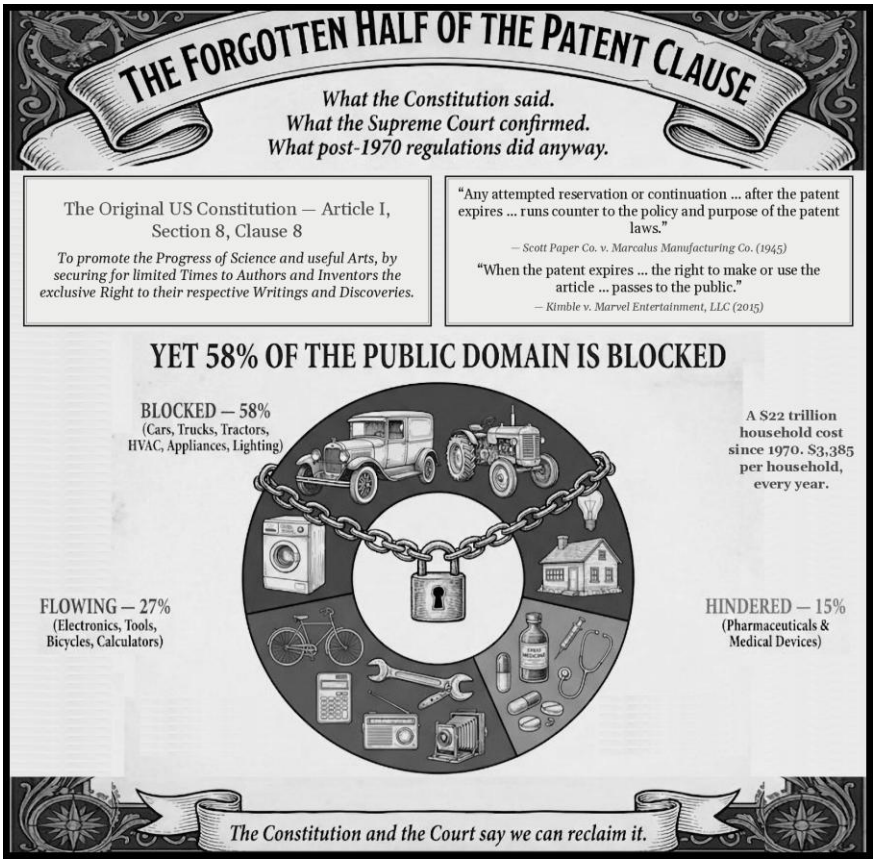
The Forgotten Half of the Patent Clause

How Federal Regulations Doubled the Cost of American Living and Rewrote the Constitution

How a Constitutional Bargain Was Cancelled — Restoring It Frees Buyers from Surveillance, Stops Robots Replacing America's Drivers & Operators, and Returns the Joy of Operating Real Machines

A constitutional law litigation strategy and a citizen's playbook — in one book.



(A solicitation seeking a confidential book review)

The work argues that a promise written into Article I, Section 8 has been quietly nullified since 1970, and that a single federal courtroom can restore it. No federal court has ever ruled on the question.

The claim, in brief

Article I, Section 8, Clause 8 was written in 1787, more than two years before the first patent law. Its words — "securing for limited Times to Authors and Inventors the exclusive Right…" — are therefore a constitutional limit on securing exclusivity by any means, not merely a rule for patent statutes. A secured restriction against competition must expire. The Supreme Court has said so for more than a century: any continuation of the monopoly after expiry, "whatever the legal device employed," runs counter to the patent laws. For 183 years no second federal power crossed that limit in ordinary commerce; the encroachments the Court struck down came from state law and private contract.

When a patent expires, the engineering design passes to the public — anyone may make, use, and improve it — while the maker's brand and logo stay protected. Yet since 1970, federal energy, emissions, and safety standards have raised a second, potentially permanent exclusion. No rule forbids remanufacture outright. But a faithful remake of a decades-old design must meet standards written for new designs, which it can rarely satisfy without ceasing to be that design. In practice the result is overwhelmingly a ban: the monopoly ends, and the exclusion from low-cost competition outlives it.

That barrier reaches an estimated 58 percent of expired-patent commerce. Five years after a ruling, my book projects, a household choosing remade goods wherever offered recovers roughly a third to half of what it now spends in those categories. One that buys nothing remade still recovers about fifteen percent, because the new tier must price against the remade tier beside it on the lot. The bottom forty percent gain most: they choose the remade item over the new one most often, and the recovery is the largest share of their income.

A general regulatory power cannot accomplish what a specific constitutional limit forbids. The argument rests on two prongs — the Patent Clause and the Takings Clause — and seeks neither deregulation nor weaker standards. It proposes a narrow time-shift: a faithful remake of a fully expired design, containing no still-patented part and certified

by an independent engineer against the safety, emissions, and energy standards of its original platform year, may be built and sold, while modern standards remain fully in force for new designs.

Federal law already trusts that mechanism in aviation, where the stakes are highest: a certificated design may keep earlier certification requirements rather than meet every current standard. After the last patent on its landing gear expired in 1969, Cessna built new 172 Skyhawks for seventeen years to a certification basis written before 1965, while any competitor would have been held to newer ones. The difference is who may use it. The FAA extended the time-shift only to the certificate's holder and those it licensed. The Constitution promises the expired engineering design to everyone. The independent examination is this book's proposal for reconciling the two. It honors the bargain and leaves modern standards intact for new designs.

What the book is

The book is 593 pages long. Every source carries a live link and cites more than 90 Supreme Court cases surveyed and noted. Gord Magill, author of "End of the Road: Inside the War on Truckers," wrote the foreword; owner-operators are the strongest plaintiff category the work identifies among 19 identified categories. Gord Magill has discussed his book and the industry twice on The Tucker Carlson Show (also January 2024), on C-SPAN's Washington Journal, on War Room with Stephen K. Bannon Ep. #4726 and on Fox's Ingraham Angle. He writes at Autonomous Truck(er)s and hosts the podcast Voice of GO(r)D.

Sample Chapters in the book:

Why Nobody Noticed: How a Constitutional Violation Hides in Plain Sight	When Outsiders Advance Constitutional Law and Other Disciplines
The Patent Clause Prong: "Limited Times" as Constitutive Language	The Takings Clause Prong: Property the Government Cannot Cancel for Free
The Environmental Question: Why Restoring the Patent Bargain Does Not Unleash 1970s Emissions	The Trucker's Burden: A Constitutional Brief for the American Cab
Why Wealthy Nations Break the Patent Promise That Poor Nations Honor	Objections Considered
Reason the Constitutional Argument Yourself: The Open-Book Examination	What You Can Do: A Citizen's Playbook

How to get it — just reply

No link to the manuscript itself is printed here, and that is deliberate. Send me a line saying you are interested and I will reply with a private link to the PDF book version; you can be reading it the same day. If you would rather hold it in print, ask and a bound copy can arrive in the mail — print-on-demand, so allow about three weeks. The draft of the book is available on the same request, in print or PDF. What I ask in return is one promise. This is an Author's Review Copy, not a published book. The link is confidential — please do not post it on social media, a website, or any public medium, and do not re-distribute the PDF. A freely circulating condensed edition could read to a publisher as competing with the book itself. If a colleague should see it, tell me and I will send them their own link.

Four public addresses, if you would rather look before you answer

https://marti124.github.io/Patent_Exam

Three chapters in full, the Brief, an Invitation to Review, and the open-book examination materials — primary sources, prompts, and scoring sheet — so you can put the question to an AI model and judge the reasoning yourself, as eleven engines did, with all of them agreeing there is a constitutional conflict here. It includes the legal research system OpenCase.

https://marti124.github.io/Patent_EndNotes

The endnotes, glossary, and key-terms apparatus — over 240 pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: more than 90 Supreme Court cases cited, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too, and say so.

https://marti124.github.io/Patent_Letters

Letter and packet generators for the Make American Living Affordable campaign, each aimed at a group with a concrete stake: sheriffs, governors and attorneys general, trucking and farm associations, health and lighting advocates, tribal leadership, public-domain scholars.

https://marti124.github.io/Patent_Exam/Handout_The_Forgotten_Half_of_the_Patent_Clause.pdf

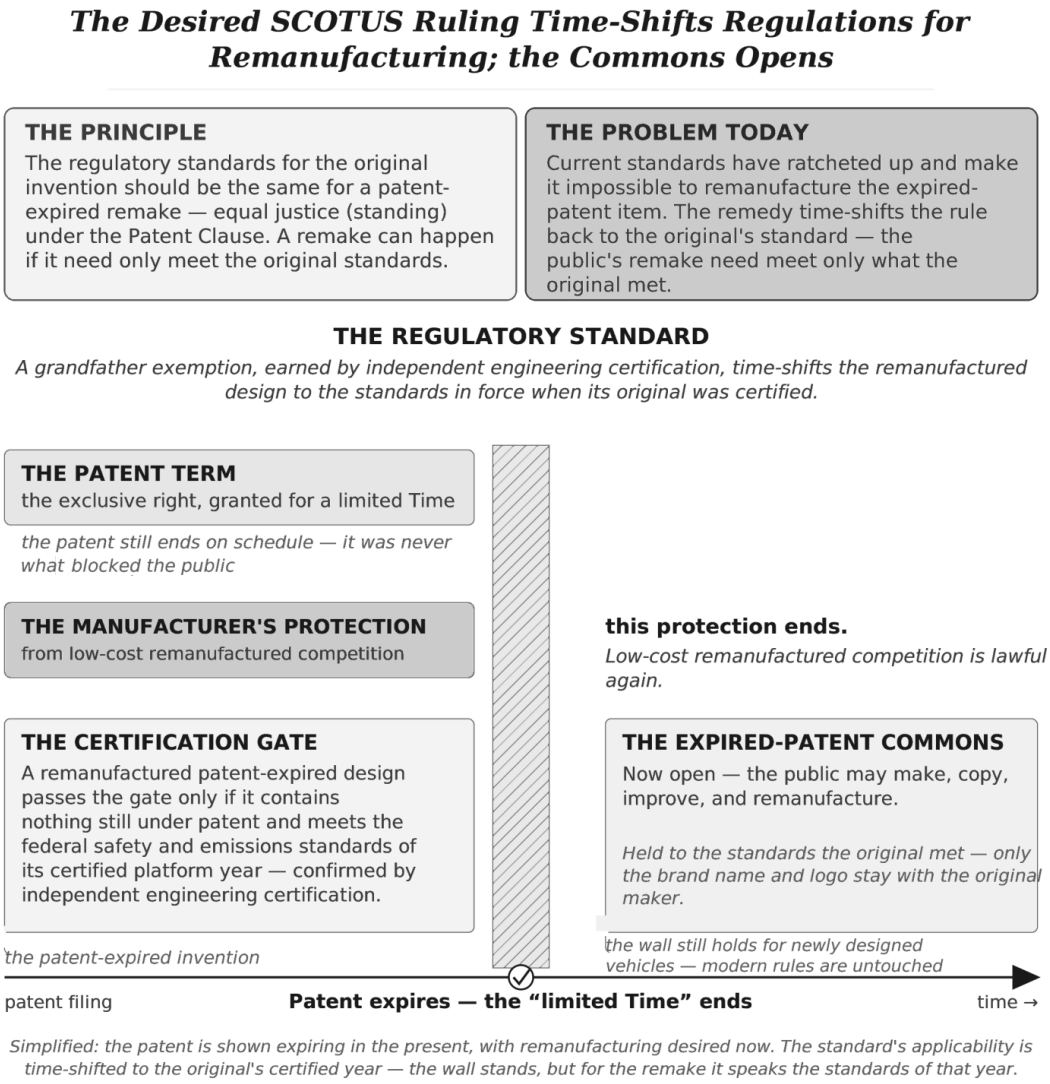
This handout.

What is being asked

A few sentences from you would help this work reach a publisher. Say whatever moves you: that the argument deserves a public hearing, that a question no federal court has ever ruled on deserves an answer, or simply that you want remanufacturing back, by the courts or by Congress. No legal opinion is expected — enthusiasm for the subject counts for as much. Please add a half-line about who you are: trucker, attorney, farmer, sheriff, engineer. It shows a publisher who this argument reaches. If it suits someone else better, share this handout with them.

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To talk it over by phone, text first at 952-905-0822. Eastern time. Email or an X message is also the place to ask for the link or the book. Below: the proposed remedy in a single diagram.



Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.

Want to read it now? Reply to me — email, text, or X — and I will send the confidential review copy today, or a bound copy by mail in about three weeks.

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https://marti124.github.io/Patent_BkSignup/